

BOGEN.AI · SIGNING PACKAGE

LISTINGSTORY MODULE 1 — THE REVEAL

Prepared for Carrie McCormick · @properties Christie's International
Real Estate · July 2026

\$3,500 ONE-TIME BUILD	\$395/mo MONTHLY SERVICE
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- **The monthly does not start until you accept the working system** — you approve an end-to-end test first.
- Build fee is split: half on signature, half only at that acceptance.
- The monthly is fixed for the initial 12-month term and covers every listing you launch (up to fifteen per month).
- You own your data, your brand, and the content produced for you.

What to sign: this package contains two documents. The first (the proposal) is a summary — its signature line is a receipt only. **The only binding document is the Service Agreement at the end; its signature page is the last page of this package.**

BOGEN.AI · PREPARED FOR CARRIE MCCORMICK

LISTINGSTORY MODULE 1 — THE REVEAL

The moment your seller finishes telling us about their home, your marketing has already started: draft listing copy in your voice, a feature sheet built, a branded page for the property, and the record in your Monday.com — before you've picked up the phone.

Prepared by Edmund Bogen & Eytan Benzeno · Bogen.ai · July 24, 2026 · Valid through August 15, 2026

WHERE THIS STARTED

What You Told Us

On our July 16 call and your July 17 email, you asked to start with the feature sheets — one focused system, delivered fast, that takes real work off your plate. That is exactly what Module 1 is. Nothing here requires you to learn software. Your sellers fill out one beautiful form; everything below follows automatically.

SCOPE

What Module 1 Includes

1 • The Seller Intake

- You've already seen the working system. Production go-live follows a final hardening pass (security, privacy notice, and seller consent flow) in Week 1 — then it's ready for real sellers.
- Branded in your palette, mobile-ready, elegant enough for your most discerning sellers.
- Captures the property's facts AND its story: upgrades, features, what the owners love about living there.
- Each submission is stored in a managed database, emailed to you as a notification, and available in your dashboard.

2 • Monday.com Sync

- New intakes flow into your Monday.com board automatically — no retyping, no copy-paste.
- Field mapping is agreed with you in a short setup call so it fits how you already work.
- Monday.com is a third-party service; we integrate with it but don't control it.

3 • The Property Story — AI Drafting Engine

- The instant a seller submits, the system drafts listing remarks and a social caption — in your luxury voice, ready for your review.
- Drafts pass through an automated screening aid that flags selected fair-housing-sensitive words and phrases for your human review. It does not evaluate every protected class, context, implication, or legal requirement. You review and approve all copy before use — final compliance always rests with you, as it does with any copy you publish.
- Your seller sees their home's Property Story appear on screen the moment they hit submit — a moment that makes you look like the most technologically advanced agent they've ever hired.

4 • The Feature Sheet — the deliverable you asked for

- A designed, branded feature-sheet PDF generated from the same intake — ready for your review, then print and share.

5 • The Listing Page

- Every property launched through ListingStory gets its own branded landing page: your bio and team information, the property's story, its facts, and its photographs — assembled automatically, polished by us.
- Photos arrive through a simple upload link you or your photographer opens on any phone.
- Hosted, secured, and maintained by us. Typically live within one business day of the intake, photos, and your approval being in.

6 • The Scoreboard — page analytics

- Each listing page reports basic traffic metrics — visits, engagement, and traffic sources where available.
- You get a clean report you can share with your seller: "here is your home's online activity this week."

THE DIFFERENCE

What This Replaces

Without ListingStory	With Module 1
Chasing seller details by phone, text, and email	One form, sent once
Writing (or paying for) listing copy per property	Drafted in your voice, instantly
Designer turnaround on feature sheets	Generated automatically from the intake
Manual CRM entry	Automatic, in Monday.com
Per-property website vendors	A branded page for each listing you launch through the system

"What's happening with my listing?" calls

An activity report with your name on it

You are currently operating without an assistant. Module 1 handles the listing-launch portion of that job in minutes instead of days.

INVESTMENT

Pricing

One-time build & setup

\$3,500

Monthly service

\$395 / mo

The build fee covers custom development: Monday.com integration, your landing-page template, the photo pipeline, analytics, and production hardening. The monthly covers hosting, the AI engine, security upkeep, the Fair-Housing screening filter, support, and hands-on help with your first three listings (up to two working sessions each) — we walk each launch through with you so this becomes habit, not homework.

The monthly fee includes up to fifteen (15) new listing launches per calendar month — more than your historical pace. Volume above that level is addressed by good-faith written amendment, and launches beyond fifteen in a month may be deferred until one is agreed. The fee is fixed for the initial 12-month term and adjustable at renewal with 30 days' written notice.

Payment Terms

Build fee — \$3,500, in two parts:

- **50% (\$1,750) deposit** due on signature of the Service Agreement. Work begins on receipt.
- **50% (\$1,750) balance** due on **Acceptance**, invoiced at Acceptance and payable within 7 days.

Acceptance is defined in the Service Agreement (Exhibit A). In short: your written approval of an end-to-end test with one sample property, five business days after we notify you the system is ready if no material defect is raised in writing, or your first production use with a real seller — whichever comes first. Minor cosmetic items don't delay Acceptance — they're handled in ordinary support.

Monthly service — \$395/mo begins on the Acceptance date, billed monthly in advance by Stripe invoice (ACH or card, auto-charge authorized).

Invoices unpaid 10 days past due accrue 1.5%/month; service may be suspended on 5 days' written notice until cured (suspension is not termination). If you cancel during the build, the deposit is earned as work is performed, and any portion materially exceeding completed work and committed costs is refunded per the Service Agreement; anything already produced is delivered to you per the ownership terms. After the initial term, either party may cancel on 30 days' written notice.

OWNERSHIP

In Plain Language

You own your data, your brand, and the content the system produces for you.

Property Stories, feature sheets, listing-page content, seller records — yours to keep, as set out in the Service Agreement. If we ever part ways, your data and generated content are exported to you. Bogen.ai owns and operates the engine that produces them.

DELIVERY

Timeline

Week	Milestone
Week 1	

Production hardening (security, privacy notice, seller consent flow), Monday.com field-mapping call (30 min), landing-page template in your brand

Week 2 Photo pipeline + analytics live; end-to-end test with a sample property; Acceptance

First 3 listings White-glove: we run each launch alongside you

What we'll need from you: Monday.com account access for the integration, your brand assets and bio/team copy, photo delivery per listing, timely review and approval of drafts, and — before your first listing publishes — a brief written acknowledgment from your managing broker (we'll provide a one-page summary that makes that conversation easy). Timeline assumes these arrive as scheduled.

BOUNDARIES

What Module 1 Is Not

- Not a CMA tool — that is a separate future module, priced on its own.
- Not social media management, email blasts, or print campaigns — those are the next chapters below.
- Not a website replacement — it complements your site rebuild; each listing page can link to (and hand copy to) your new site.

ROADMAP

The Chapters Ahead

Everything below runs off the same intake your seller already filled out. Future modules are offered as released, at Bogen.ai's discretion, each only when the current one is demonstrably earning its keep — priced when you're ready, never before.

- **The Courtship** — social launch packs, Just Listed emails, Coming Soon campaigns; then weekly seller-update emails in your voice and one-click price-adjustment refreshes.
- **The Vows** — Just Sold announcements and a testimonial engine that turns closings into reviews.
- **The Circle** — your 20 years of contacts, re-engaged with a systematic outreach cadence; a newsletter engine; a referral machine.

STANDARDS

Compliance & Data

- AI drafts pass through an automated screening aid that flags fair-housing-sensitive language for your human review, and require your approval before use; the system supports your compliance workflow, and final approval always rests with you.
- Seller data is stored with reasonable administrative, technical, and physical safeguards, used only to produce your deliverables, and never sold. Trusted service providers (AI, hosting, database) process data solely to deliver the system; the Service Agreement lists them and carries the full data-handling, privacy, and brand-license terms.

ACKNOWLEDGMENT OF RECEIPT ONLY

This proposal is a non-binding sales summary provided solely for discussion. It is not intended to be signed as a contract, does not evidence assent or an intent to be bound, and creates no duty to negotiate, proceed, reimburse expenses, or enter into any transaction. Only the fully executed **ListingStory Service Agreement** (the "Service Agreement") and its exhibits create obligations.

If any term in this proposal conflicts with the Service Agreement, **the Service Agreement controls**. All service levels, timelines, ownership, fees, warranties, and limitations of liability are **defined solely in the Service Agreement**. Descriptions in this proposal are illustrative and are qualified in their entirety by it.

The signature below is an **acknowledgment of receipt only** — it is not approval, acceptance, authorization to begin work, or agreement on scope or price.

RECEIVED — CARRIE MCCORMICK · DATE

PRESENTED — DAVE T PRODUCTIONS, LLC D/B/A BOGEN.AI ·
EDMUND BOGEN · DATE

BOGEN.AI

Edmund Bogen & Eytan Benzeno · Presented together with the ListingStory Service Agreement, which is the sole binding instrument
Dave T Productions, LLC d/b/a Bogen.ai · Boca Raton, Florida

BOGEN.AI · CONFIDENTIAL

LISTINGSTORY SERVICE AGREEMENT

Between Dave T Productions, LLC d/b/a Bogen.ai and Carrie McCormick · July 24, 2026

This ListingStory Service Agreement (the "**Agreement**") is entered into as of the date of last signature below (the "**Effective Date**") by and between **Dave T Productions, LLC**, a Florida limited liability company doing business as **Bogen.ai**, with its principal place of business in Boca Raton, Florida ("**Provider**"), and **Carrie McCormick**, an individual real estate licensee affiliated with @properties Christie's International Real Estate ("**Client**"). Provider and Client are each a "**Party**" and together the "**Parties**."

1. Definitions

- "**Platform**" means Provider's ListingStory software system, including all code, templates, page layouts, designs, prompts, workflows, integrations, documentation, and improvements, whether existing before or developed during this Agreement.
- "**Client Instance**" means the Client-branded deployment of the Platform operated by Provider for Client.
- "**Client Data**" means information submitted to the Client Instance by Client, Client's team, or property sellers, including seller contact information and property information.
- "**Client Brand**" means Client's name, likeness, logos, trademarks, brand assets, and biographical content.
- "**Generated Content**" means text, documents, pages, and reports produced by the Client Instance for Client (e.g., Property Stories, feature sheets, listing-page content, analytics reports), excluding the Platform's templates, layouts, designs, and code.
- "**AI Services**" means artificial-intelligence models and services selected by Provider, which may include services from Anthropic, OpenAI, or other vendors. Provider may select, combine, and substitute AI Services and other subprocessors as set out in Section 8.2, provided the quality of the Services is not materially degraded.
- "**Security Incident**" means actual or reasonably suspected unauthorized access to, or acquisition, use, modification, disclosure, destruction, or loss of availability of, Client Data in Provider's possession or control (including encrypted data where the means of decryption is compromised).

- **"Client Dependencies"** means the items and cooperation Client must provide under Section 6.4.
- **"Third-Party Services"** means the third-party services described in Section 9.
- **"Order Form"** means a scope-and-fees exhibit executed by both Parties under this Agreement. Exhibit A (Module 1) is the initial Order Form. Additional modules require a new Order Form; informal communications (including email or text) do not modify scope.

2. Services

2.1 Provider will build, host, operate, and support the Client Instance and deliver the services described in each executed Order Form (the **"Services"**).

2.2 **Change orders.** Scope changes, additional features, and new modules are added only by a written Order Form or amendment signed by both Parties.

2.3 **Non-exclusivity.** The Services are provided on a non-exclusive basis. Provider may develop, market, and provide the same or similar services, systems, and content frameworks to other clients, provided Provider will never use Client Brand or Client Data for any other client. Any territorial exclusivity, if agreed, will be set out in a separately priced addendum.

2.4 **Service levels.** Provider will perform the Services in a professional and workmanlike manner and will use commercially reasonable efforts to meet the target turnaround times described in an Order Form. Target times are goals, not guarantees, and are conditioned on Client Dependencies (Section 6) and Third-Party Services (Section 9). No service credits apply. Client's exclusive remedy for breach of the performance warranty in this Section is re-performance of the affected Service following written notice given within thirty (30) days of the affected Service.

2.5 **Right to refuse.** Provider may decline to generate, and may suspend or remove from the Client Instance, content it reasonably believes to be unlawful, discriminatory, infringing, or deceptive, without breach of this Agreement, and will promptly notify Client of any such action.

3. Fees & Payment

3.1 Fees for each module are stated in its Order Form. For Module 1: a one-time build fee of **\$3,500** (50% deposit on signature of this Agreement; 50% on Acceptance as defined in Exhibit A) and a monthly service fee of **\$395** beginning on the Acceptance date, billed monthly in advance.

3.2 **Method.** Provider invoices via Stripe; payment by ACH or card. Client authorizes automatic monthly charge of recurring fees to a payment method on file.

3.3 **Late payment.** Amounts unpaid ten (10) days past due accrue interest at 1.5% per month or the maximum lawful rate, whichever is less. Provider may suspend the Services (including hosting, sync, and generation) on five (5) days' written notice until cured. Suspension is not termination and does not relieve accrued fees.

3.4 Fee changes. Recurring fees are fixed for the Initial Term of the applicable Order Form and may be adjusted thereafter on thirty (30) days' written notice. Recurring fees do not vary with Client's listing volume within the fair-use assumption stated in the applicable Order Form.

3.5 Termination before Acceptance. Client may terminate an Order Form for convenience before Acceptance on written notice. The deposit is applied to reservation of capacity, discovery, configuration, and initial development and is earned as those activities occur; Provider will refund any portion of the deposit materially exceeding the value of work completed and third-party costs committed as of the termination date. Deliverables completed as of termination are provided to Client under Section 5.

3.6 Taxes. Fees are exclusive of applicable taxes, which are Client's responsibility (excluding taxes on Provider's income).

4. Term & Termination

4.1 Term. This Agreement begins on the Effective Date and continues while any Order Form is active (the "**Term**"). Each Order Form runs for an initial term of twelve (12) months from its Acceptance date (the "**Initial Term**"), then renews month-to-month.

4.2 Termination for convenience. After the Initial Term, either Party may terminate an Order Form or this Agreement on thirty (30) days' written notice.

4.3 Termination for cause. Either Party may terminate if the other materially breaches and fails to cure within fifteen (15) days of written notice. Provider may terminate immediately for non-payment continuing ten (10) days after a suspension under Section 3.3.

4.4 Effect of termination. On termination: (a) the Client Instance and listing pages are taken offline following a transition period of up to fifteen (15) days if requested by Client in writing within five (5) days of the termination notice (recurring fees continue pro rata during transition, prepaid; Provider may decline transition where termination results from Client's unlawful content or security misuse); (b) Provider exports Client Data and Generated Content per Section 8.5; (c) each Party ceases public use of the other's marks except as separately approved in writing under Section 13; (d) accrued payment obligations survive. Sections 5, 7, 8, 10–12, and 14–16 survive termination.

5. Intellectual Property & Ownership

Plain-language summary (non-operative): Client owns her data, her brand, and the content produced for her. Provider owns the engine.

5.1 Platform. Provider owns the Platform, including all improvements made during this Agreement. No Platform rights transfer to Client. Nothing in any proposal or communication shall be construed as transferring ownership of the Platform, source code, templates, or prompts.

5.2 Client Data and Client Brand. As between the Parties, Client owns Client Data and Client Brand. Client grants Provider a non-exclusive, royalty-free license to use them during the Term solely to provide the Services (including display of Client Brand on the Client Instance and listing pages),

consistent with the Illinois Right of Publicity Act (765 ILCS 1075) where applicable. Any use after the Term requires separate written approval under Section 13.

5.3 Generated Content. Upon payment of the fees due for the applicable period, Provider assigns to Client all transferable rights, if any, that Provider owns in Generated Content created specifically for Client. Provider does not represent that AI-generated material is copyrightable, exclusive, or free from similarity to independently generated third-party material. Client receives no rights in Provider's templates, designs, layouts, prompts, or code.

5.4 Embedded elements. Provider grants Client a perpetual, non-exclusive license to use Provider's templates and design elements solely as incorporated into paid, exported Generated Content — not to extract, commercialize, sublicense, or use them to recreate the Platform.

5.5 Client Instance. The Client Instance is licensed to Client, not sold, for the duration of an active subscription.

6. Client Responsibilities & Dependencies

6.1 Review and approval. Client (or her designee) must review and approve all Generated Content before publication or distribution. Client is solely responsible for the content she approves, publishes, or distributes, including its accuracy and its compliance with fair-housing laws, MLS rules, advertising regulations, and her brokerage's policies. The Platform's screening tools support, but do not replace, Client's review. Client will independently verify facts in drafts — including dimensions, features, renovations, school and neighborhood references, and pricing — before use.

6.2 Brokerage authorization. Before Provider uses any brokerage name, mark, template, MLS data, or brokerage-controlled system, Client will obtain all required written approvals and provide them to Provider on request. Client represents that her use of the Services complies with her brokerage agreements, MLS rules, license obligations, and advertising policies. Before the first listing publishes through the Client Instance, Client will obtain written acknowledgment from her managing broker (Provider will supply a summary document for this purpose). Brokerage acknowledgment does not make the brokerage a party to this Agreement.

6.3 Rights in supplied materials. Client represents and warrants that she has all rights, permissions, releases, and lawful bases necessary for Provider to collect, process, reproduce, modify, transmit, publicly display, and distribute Client Data, Client Brand, photographs, floor plans, testimonials, seller statements, and other materials supplied or approved by Client.

6.4 Dependencies. Client will provide in a timely manner: Monday.com account access, brand assets and bio/team copy, property photographs, seller cooperation, draft approvals, and scheduled calls. Provider's target timelines are extended day-for-day by delays in Client Dependencies.

6.5 Seller-facing terms. Client will direct sellers to complete the intake truthfully and will not remove or bypass the intake's privacy notice, consent, and accuracy-attestation steps. Client will review and approve the seller-facing privacy notice; Provider supplies technology language, not legal advice.

7. AI Disclaimer

7.1 Generated Content is produced with AI Services and is provided as **drafts for Client's review**. Provider does not warrant that Generated Content is accurate, complete, compliant, or fit for publication without review. The automated screening aid flags selected fair-housing-sensitive words and phrases for human review; it does not evaluate every protected class, context, implication, image, omission, targeting decision, or legal requirement, and it is not legal advice or a compliance guarantee.

7.2 Provider does not guarantee business results, including listing volume, sale outcomes, page traffic, or lead generation.

7.3 Provider is a technology and consulting provider, not a law firm and not a real estate brokerage, and provides no legal or brokerage services under this Agreement. No specific web-accessibility standard is warranted unless stated in an Order Form; Client selects any required accessibility standard, and responsibility for accessibility claims concerning published pages rests with Client except to the extent caused by Provider's failure to implement a standard the Parties agreed in writing. Accessibility remediation is available by Order Form.

8. Data, Privacy, Security & Confidentiality

8.1 **Use.** Provider uses Client Data solely to provide the Services under Client's instructions as documented in this Agreement and the Order Forms. Provider will not sell Client Data, will not use seller personal information for Provider's own marketing, and will not use identifiable Client Data to train AI models or improve unrelated products.

8.2 **Subprocessors.** Client authorizes the subprocessors listed in Exhibit B. Provider will contractually require each recipient of Illinois residents' personal information to implement and maintain reasonable security measures protecting the information from unauthorized access, acquisition, destruction, use, modification, or disclosure, as required by 815 ILCS 530/45(b), and to notify Provider promptly of any Security Incident. Provider will give Client at least fifteen (15) days' notice of a material subprocessor change (except emergency replacements, with prompt notice after); if the change materially increases privacy or security risk, Client may object in writing and, failing resolution, terminate the affected Order Form on notice.

8.3 **Security.** Provider will implement and maintain reasonable administrative, technical, and physical safeguards appropriate to the nature of the data, consistent with the Illinois Personal Information Protection Act (815 ILCS 530), including access controls and authentication on administrative dashboards, encryption in transit, least-privilege access, and logging of administrative access.

8.4 **Prohibited data.** The intake is designed so that property access details (e.g., codes) are not collected through the form; sellers are directed to convey any such information to Client directly, and Client will not instruct sellers otherwise. Client will not submit, and will direct sellers not to submit,

Social Security or government-ID numbers, financial account credentials, medical or biometric information, children's data, alarm codes, or immigration information through the Services.

8.5 Export and deletion. On termination or written request, Provider will export Client Data and Generated Content in commercially standard formats (CSV/JSON for data; PDF/HTML/text for documents and pages) within fifteen (15) days, and will delete Client Data from active systems within sixty (60) days of a written deletion request, and from routine backups within ninety (90) days on cycle, except as required by law. Deletion of data required to operate the Services may require termination of the affected Order Form, and Provider will so advise before acting on the request.

8.6 Incident response. Provider will investigate promptly and notify Client within forty-eight (48) hours of discovering an actual or reasonably suspected Security Incident, provide rolling factual updates and a root-cause summary, preserve relevant evidence, and reasonably cooperate on legally required notifications. This contractual reporting obligation is independent of, and does not enlarge or reduce, any statutory consumer-notification threshold or deadline, including under 815 ILCS 530/10. Neither Party will notify affected individuals on the other's behalf without coordination unless legally required. Costs of responding to a Security Incident are borne by the Party whose breach of this Agreement or negligence caused it; otherwise each Party bears its own costs.

8.7 Confidentiality. Each Party will protect the other's non-public business, technical, security, pricing, and seller information with reasonable care, use it only to perform this Agreement, and disclose it only to personnel and advisors who need it and are bound to confidentiality. Confidentiality obligations do not apply to information that is or becomes publicly available without breach, was rightfully known before disclosure, is independently developed without use of the other Party's information, or is rightfully received from a third party without duty of confidence — except that seller personal information remains protected regardless. Compelled disclosures are permitted with prompt notice where lawful. Breach of this Section may cause irreparable harm, and the injured Party may seek injunctive relief without posting bond. This Section survives termination for three (3) years (indefinitely for seller personal information).

9. Third-Party Services

The Services depend on third-party services not controlled by Provider, including Monday.com, AI Services vendors, hosting, database, and email providers. Provider is not liable for their acts, omissions, outages, price changes, or API changes, **except to the extent liability results from Provider's breach of its express obligations under this Agreement, its negligent selection or configuration of a subprocessor, or its failure to exercise commercially reasonable mitigation.** Provider may substitute providers under Section 8.2. Client's use of Monday.com is governed by Client's own agreement with Monday.com; Client will provide Provider least-privilege credentials or tokens for the integration, and Provider will use them solely for the integration.

10. Warranties; Disclaimer

Each Party warrants it has authority to enter this Agreement. Provider warrants the Services will be performed in a professional and workmanlike manner, with the exclusive remedy stated in Section 2.4. EXCEPT AS EXPRESSLY STATED, THE SERVICES, PLATFORM, AND GENERATED CONTENT ARE

PROVIDED "AS IS," AND PROVIDER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT OF GENERATED CONTENT AS PUBLISHED BY CLIENT. EACH PARTY ACKNOWLEDGES IT HAS NOT RELIED ON ANY STATEMENT, FORECAST, DEMONSTRATION, TIMELINE, SECURITY CHARACTERIZATION, OR COMPLIANCE DESCRIPTION NOT EXPRESSLY STATED AS A BINDING OBLIGATION IN THIS AGREEMENT; NOTHING IN THIS SENTENCE EXCLUDES LIABILITY FOR FRAUD TO THE EXTENT IT CANNOT LAWFULLY BE EXCLUDED.

11. Indemnification

11.1 By Client. Client will defend and indemnify Provider and its members, managers, employees, and contractors against third-party claims, governmental investigations, and administrative proceedings arising from (a) content Client approved, published, or distributed; (b) Client's real estate activities and brokerage obligations; (c) Client Data and materials supplied by Client or her sellers, including missing rights or permissions; or (d) Client's breach of Section 6 — except in each case to the extent caused by Provider's breach of this Agreement, gross negligence, or willful misconduct.

11.2 By Provider. Provider will defend and indemnify Client against third-party claims that the Platform itself infringes a U.S. copyright or trademark. This obligation does not apply to claims arising from Client Data, Client Brand, Generated Content as approved or published by Client, Client's modifications or combinations of deliverables with materials not supplied by Provider, use outside the scope of this Agreement, or continued use after Provider provides a non-infringing alternative. If the Platform is or is likely to become subject to such a claim, Provider may procure the right to continue, modify or replace the affected component, or terminate the affected Order Form and refund prepaid unused fees. This Section states Client's exclusive remedy for Platform infringement.

11.3 Procedure. The indemnified Party must give prompt written notice of a claim (delay excuses the obligation only to the extent of resulting prejudice), tender control of the defense to the indemnifying Party with counsel reasonably acceptable to the indemnified Party, and cooperate at the indemnifying Party's expense. The indemnifying Party may not settle in a manner imposing non-monetary obligations or admissions on the indemnified Party, or without an unconditional release of the indemnified Party, without its consent.

12. Limitation of Liability

NEITHER PARTY IS LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, LOST COMMISSIONS, OR LOST BUSINESS OPPORTUNITY. EACH PARTY'S TOTAL AGGREGATE LIABILITY UNDER THIS AGREEMENT — **INCLUDING ITS INDEMNIFICATION OBLIGATIONS** — IS CAPPED AT THE GREATER OF (A) THE FEES PAID OR PAYABLE BY CLIENT UNDER THE AFFECTED ORDER FORM IN THE TWELVE (12) MONTHS PRECEDING THE FIRST EVENT GIVING RISE TO THE CLAIM, OR (B) TWELVE (12) TIMES THE MONTHLY SERVICE FEE UNDER THE AFFECTED ORDER FORM. RELATED EVENTS AND CLAIMS AGGREGATE AS ONE. THESE LIMITS DO NOT APPLY TO CLIENT'S PAYMENT OBLIGATIONS OR TO LIABILITY THAT CANNOT BE LIMITED BY LAW. THE LIMITATIONS AND PROTECTIONS IN THIS AGREEMENT ALSO PROTECT PROVIDER'S MEMBERS, MANAGERS, OFFICERS, EMPLOYEES, CONTRACTORS,

LICENSORS, SUBPROCESSORS, AND AFFILIATES, EACH AN INTENDED THIRD-PARTY BENEFICIARY; NO SUCH PERSON HAS PERSONAL CONTRACTUAL LIABILITY UNDER THIS AGREEMENT.

13. Publicity

Neither Party will make public-facing use of the other's name, logo, or likeness except as needed to provide the Services during the Term or with prior written approval. Provider's portfolio, testimonial, case-study, and post-termination uses each require Client's separate written approval, not to be unreasonably withheld, consistent with the Illinois Right of Publicity Act (765 ILCS 1075).

14. Force Majeure

Neither Party is liable for delay or failure caused by events beyond its reasonable control, including internet or third-party service outages, acts of God, labor disputes, or governmental action, provided the affected Party resumes performance promptly.

15. Governing Law; Disputes

15.1 This Agreement is governed by the laws of the State of Florida, without regard to conflicts rules. Florida bears a substantial relationship to the Parties because Provider is organized and operates there, and this forum and law provision was specifically reviewed and agreed by both Parties. Nothing in this Section eliminates non-waivable obligations under laws that mandatorily apply to conduct, personal information, persons, or real property located in Illinois.

15.2 Before filing suit, the Parties will attempt in good faith to resolve any dispute by direct negotiation and, failing that, by non-binding mediation initiated on written notice, conducted remotely or at an agreed location through a recognized mediation provider, with costs shared equally, concluding no later than thirty (30) days after initiation unless extended by agreement. Mediation does not suspend limitation periods, and either Party may seek emergency injunctive relief, and Provider may pursue collection of undisputed fees, at any time.

15.3 Exclusive venue for any action is the state or federal courts located in Palm Beach County, Florida; each Party consents to their jurisdiction and knowingly waives objections based on personal jurisdiction, venue, and forum non conveniens. The prevailing Party in any action is entitled to reasonable attorneys' fees; fee awards count toward the cap in Section 12, except fee awards in actions to collect undisputed fees.

16. General

16.1 **Entire agreement; precedence.** This Agreement, with its Order Forms and exhibits, is the entire agreement and **supersedes all prior and contemporaneous proposals, decks, emails, and**

discussions, including all prior ListingStory proposals and the July 17, 2026 email correspondence, none of which shall have binding effect. In a conflict, the following order controls: (1) a signed amendment expressly identifying the provision amended; (2) the applicable Order Form, solely as to scope, fees, acceptance criteria, and term; (3) the body of this Agreement; (4) any incorporated policy. Proposals and sales materials never control.

16.2 Amendment; waiver. Only a writing signed by both Parties amends this Agreement. Failure to enforce is not waiver. Remedies are cumulative except where an exclusive remedy is stated.

16.3 Assignment. Neither Party may assign without the other's consent, except Provider may assign to an affiliate or in connection with a merger or sale of substantially all assets.

16.4 Independent contractors; third parties. The Parties are independent contractors. Except as stated in Section 12, there are no third-party beneficiaries; sellers and other third parties have no rights under this Agreement.

16.5 Notices. Written notices go to the addresses and emails on the signature page (each Party will keep its notice information current). Email notice is deemed received on the next business day after transmission absent a delivery-failure response.

16.6 Counterparts; e-signature; records. This Agreement may be executed in counterparts and by electronic signature, each an original. System logs and electronic records maintained in the ordinary course are admissible to the same extent as paper records.

16.7 Severability; construction. If a provision is unenforceable, the remainder stays in effect and the provision is reformed to the minimum extent necessary. Both Parties participated in drafting; no rule of construction against the drafter applies. Headings are for convenience only.

Exhibit A — Order Form No. 1: Module 1, "The Reveal"

Scope: (1) branded seller intake form with privacy notice, consent, and seller accuracy attestation; (2) Monday.com synchronization of intake records (field mapping agreed at setup); (3) AI drafting engine producing draft listing remarks and social caption per intake, with automated fair-housing screening aid and a Client approval workflow that records the approver, final text, and timestamp — nothing auto-publishes; (4) branded feature-sheet PDF per intake; (5) branded listing page per property launched through the system (Client bio/team content, property information, photographs via upload link), hosted by Provider; (6) basic listing-page traffic metrics, a shareable activity report, and a submissions dashboard showing intake status and generated deliverables.

Onboarding support: white-glove support for Client's first three (3) listings, up to two (2) working sessions each.

Target timeline: production hardening and field mapping in week 1; photo pipeline, analytics, end-to-end sample test, and go-live in week 2 — subject to Client Dependencies (Section 6.4).

Acceptance: the earlier of (a) Client's written approval of a successful end-to-end test with one sample property (intake → Property Story → feature sheet → listing page → Monday.com sync) in a current version of Chrome or Safari; (b) five (5) business days after Provider notifies Client the system is live and available for testing, unless Client identifies a Material Defect in writing; or (c) Client's first production use with a real seller. A **Material Defect** is a reproducible failure that substantially prevents one of the core workflow steps listed in (a); Provider has five (5) business days to cure and re-tender, and the Acceptance clock restarts on re-tender. Minor cosmetic items do not delay Acceptance and are handled in ordinary support. Provider may invoice on Acceptance notwithstanding open non-material items. **Long-stop:** if Client has not completed testing or provided outstanding Client Dependencies within thirty (30) days of Provider's go-live notice, Acceptance is deemed to occur, or Provider may terminate this Order Form under Section 3.5 economics. The long-stop period is tolled while a timely reported Material Defect remains uncured.

Fees: Build fee \$3,500 — \$1,750 on signature of this Agreement; \$1,750 on Acceptance, net 7 days. Monthly service fee \$395, commencing on the Acceptance date, billed monthly in advance.

Fair-use assumption: the monthly fee includes up to fifteen (15) new listings launched through the system per calendar month; sustained volume above this level is addressed by good-faith Order Form amendment, and no additional fee applies unless agreed in writing. Provider may defer launches exceeding fifteen (15) in a calendar month until an amendment is agreed.

Initial Term: twelve (12) months from Acceptance, then month-to-month.

Exhibit B — Subprocessors

Function	Current provider
AI Services (draft generation, screening)	Anthropic, PBC
CRM synchronization	monday.com Ltd. (under Client's own Monday.com account)
Application hosting	Vercel Inc.
Database	Supabase, Inc. (PostgreSQL)
Transactional email	

	Google LLC (Gmail/Workspace SMTP)
Spreadsheet mirror (optional)	Google LLC (Apps Script / Sheets)
Billing	Stripe, Inc.
Provider may update this list per Section 8.2 (15 days' notice of material changes; Client objection right).	

Signatures

Agreed and accepted as of the Effective Date.

CLIENT — CARRIE MCCORMICK,
INDIVIDUALLY
DATE · NOTICE ADDRESS/EMAIL:

DAVE T PRODUCTIONS, LLC, A
FLORIDA LIMITED LIABILITY
COMPANY, D/B/A BOGEN.AI
BY: EDMUND BOGEN, ITS MANAGER
· BOCA RATON, FLORIDA
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